



POLICE DEPARTMENT

September 23, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303334 (Incident Date: April 4, 2023) regarding Police Officer Erin Devoy, Tax No. 968376 (DADS No. 2024-31419)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303334, pertaining to Police Officer Erin Devoy. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Devoy would be detrimental to the Police Department's disciplinary process.

After reviewing the evidence, the Police Commissioner agrees with CCRB's substantiated findings regarding the threats to remove to the hospital, discourtesy, and the improper detainment of an individual. However, the Police Commissioner disagrees with CCRB's findings regarding the allegations for offensive language and interfering with a recording device. The Police Commissioner has determined the evidence shows that Police Officer Devoy did not intend to disparage the complainant's perceived disability or gender, nor did the complainant find the comments to be offensive. Notably, the complainant did not allege that Police Officer Devoy made offensive or discourteous remarks to him or used offensive language during their conversation. Rather, the CCRB investigator discovered these remarks only after viewing officer's body worn camera footage. Police Officer Devoy also stated these remarks were not intended to reference perceived disability or gender, nor were they meant to condescend or demean the complainant. Based on the body worn camera footage, the Police Commissioner has determined these statements do not rise to the level of offensive language. However, the Police Commissioner agrees with CCRB that these comments were discourteous.

The Police Commissioner has determined, despite Police Officer Devoy requesting that the complainant stop filming the interior of the police vehicle, she ultimately did not interfere with his ability to record. Police Officer Devoy stated that the complainant should stop recording but took no action to prevent him from continuing to do so. Furthermore, when the complainant informed Police Officer Devoy that he was recording their interaction, Police Officer Devoy acknowledged it, without

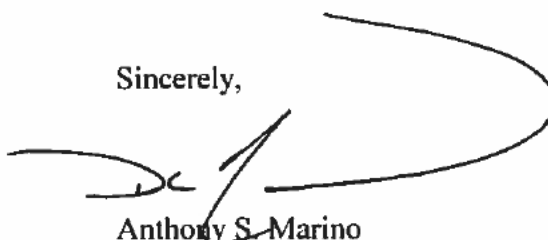
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attempting to stop him, and responded, that she was recording him too. The Police Commissioner has determined Police Officer Devoy did not interfere with the complainant's use of his cellular phone, as she allowed him to continue recording their encounter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to issue Officer Devoy a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days and formalized training for the allegations regarding the stop, the threat to remove to the hospital, and the discourtesy. However, the Police Commissioner intends to impose no disciplinary action for allegations regarding offensive language and interfering with the use of a recording device.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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September 30, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303334 (Incident Date: April 4, 2023) regarding Police Officer Erin Devoy, Tax No. 968376 (DADS No. 2024-31419)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 23, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against Officer Devoy would be detrimental to the Police Department's disciplinary process. Consequently, you concluded you would retain jurisdiction and direct the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacations day and formalized training for the improper stop of an individual, threat to remove to the hospital, and accompanying discourtesy. However, you determined Officer Devoy would receive no disciplinary action for alleged offensive language and interference with the use of a recording device.

We disagree with your determination that Officer Devoy's use of offensive language and interference with the use of a recording device were proper. While you contend that Officer Devoy's statement, to wit, "I don't think you're right in the head right now" did not intend to disparage the complainant, Officer Devoy's intent or lack thereof is irrelevant in determining Officer Devoy's culpability. See DiGiacomo v. NY City Civilian Complaint Review Bd., 2023 NY Slip Op. 01475, 2023 N.Y. App. Div. LEXIS 1502, *2 (1st Dep't 2023) (sustaining an abuse of authority charge for a violation of the Right to Know Act without a requirement that the officer acted with intent or received a request for identification). Additionally, Officer Devoy's intent does not absolve her of her responsibility to treat complainants with courtesy or refrain from making statements which implicate mental health status or disability. Finally, we disagree with your characterization that Officer Devoy did not interfere with the complainant's use of his cellular phone: to the contrary, Officer Devoy actively (and impermissibly) discouraged the

complainant by telling him he was not allowed to film their encounter. Nor did Officer Devoy possess or articulate a valid concern, such as fear for her safety or ongoing exigency, which might justify such a command.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against Officer Devoy to proceed.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor
for Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303334 (Incident Date: April 4, 2023) regarding Police Officer Erin Devoy, Tax No. 968376 (DADS No. 2024-31419)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 30, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Erin Devoy. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Devoy for the reasons expressed in my September 23, 2024 letter. Please note that, though the previous letter did not specifically address the allegation regarding the questioning, the Police Commissioner determined that it warranted no disciplinary action. The Police Commissioner determined that Police Officer Devoy was attempting to build rapport with the complainant by asking for his name, in order to de-escalate the situation.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days with formalized training for the allegations regarding the detainment, the threat to remove to the hospital, and the discourtesy. Furthermore, the Police Commissioner directs that no disciplinary action be imposed for allegations regarding the questioning, the offensive language, and interfering with the use of a recording device.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office